



DECISION

Complaint No. : POS/7672/2022/HYD/461

Name and address of the complainant : Mst. Jannat Khatoon wd/o. Muhammad Azam Soomro, C/o. Shafi Muhammad Soomro, Plot No. D-50, Revenue Housing Society, Phase-II, Qasimabad, Hyderabad.

Name of the Agency Complained against : Agriculture Supply & Prices Department,

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director, Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject :

COMPLAINT REGARDING NON-PAYMENT OF SALARIES AND SERVICE DUES TO THE COMPLAINANT

Complaint

Mst. Jannat Khatoon filed a complaint dated 29.11.2022 wherein she stated that her late husband, named Muhammad Azam Soomro was working as Sale Inspector, SASO (BPS-07). He was allegedly involved in misappropriation of fertilizer bags, amounting to Rs.290,880/- and he was suspended from service, finally he was dismissed from service vide order dated 02.11.1998. A case FIR No.33/1997 was registered against him by the Anti-Corruption Agency. The case was under trial before Anti-Corruption Court at Hyderabad but her husband was murdered on 13.02.2012 during the proceedings in the court.

2. The complainant applied for payment of outstanding salaries and admissible service dues in respect of her late husband at various forums. The Regulation Wing of S&GAD had given opinion vide letter dated 15.03.2022 as under:

Since Muhammad Azam Soomro s/o. Muhammad Usman Soomro, ex-Sub Sale Inspector was not convicted, not proved guilty of corruption during proceedings of 13 years upto his murder and the proceedings stand abated and the case was consigned to record on 21.11.2012 by the Hon'ble Anti-Corruption Court Hyderabad. This department is of the view that dismissal of Muhammad Azam Soomro was illegal and he was entitled for getting salaries during suspension period from December 1996 upto his death on 14.02.2012 which can be paid to his widow Mst. Jannat Khatoon alongwith service benefits as per rules.

3. In the light of opinion of Regulation Wing, S&GAD, the Secretary, Agriculture Department issued order dated 28.04.2022 as under:

In the light of above advice tendered by Advocate General Sindh, late Muhammad Azam Soomro Ex-Sub Inspector (BPS-07) (SASO) (Defunct) is hereby posthumous reinstated in service. His other monetary and post-retirement service benefits will be decided separately.

Since then, she is visiting the offices of Agriculture Department and other agencies but the service dues are not being paid to her. Aggrieved by that, she solicited intervention of this Institution.

(2)

Proceedings

4. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.

5. This office issued a notice vide letter dated 25.01.2023 to the Section Officer (A-IV), Agriculture & Supply Department for report, who in response informed vide letter dated 22.10.2024 that the admissible service dues of late Muhammad Azam Soomro have been worked out as under:

S #	Period	Amount	Remarks
1	01.12.1996 to 31.01.2004	Rs. 339,036/-	Withheld salaries up to winding up of SASO
2	01.02.2004 to 14.02.2012	Rs.238,002/-	Self Pension up to his death
	Grand Total	Rs.577,038/-	

6. The Finance Department vide letters dated 21.11.2024 addressed to the District Accounts Officer Hyderabad and subsequent letter dated 18.04.2025 addressed to the Accountant General Sindh sanctioned the amount of Rs.329.652/- as arrears of salaries of deceased Muhammad Azam Soomro for payment subject to fulfilment of codal formalities. The office of A.G. Sindh returned back the original bill with following objections:

- (i) Original service book with authenticated verification of service.
- (ii) Copy of last pay bill manual.
- (iii) Last Pay Certificate signed by DDO.
- (iv) Permission of Secretary for ID creation.

7. This office issued notices repeatedly to the Secretary, Agriculture Department and Additional Director, Agriculture Extension Hyderabad but the grievance of the complainant has not been resolved.

Findings

8. The investigation of the case revealed maladministration against the Agriculture Department on its failure to provide relief to the widow complainant in pursuance to the office order dated 28.04.2022 wherein the deceased Muhammad Azam Soomro was posthumously reinstated in service.

Decision

9. In view of the above and in exercise of powers vested in me under section 11 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), I, hereby direct the Secretary, Agriculture Supply & Price Department to get the objections of A. G. Sindh addressed and ensure payment to the complainant as approved by the Finance Department under intimation to this office.

Given under my hand and seal of the office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 13th January, 2026